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Convention on the Rights of Persons with Disabilities

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Committee on the Rights of Persons with Disabilities

Report on follow-up to the inquiry concerning the United Kingdom of Great Britain and Northern Ireland conducted under article 6 of the Optional Protocol to the Convention

Report of the Committee*

I. Introduction

1. The Committee adopted its report on the inquiry concerning the United Kingdom of Great Britain and Northern Ireland conducted under article 6 of the Optional Protocol to the Convention at its fifteenth session (29 March–21 April 2016).[1]

2. During its eighteenth session (14–31 August 2017), the Committee considered the initial report of the State party and adopted concluding observations.[2]

3. In a note verbale dated 4 November 2022, the Committee informed the State party that it had decided to follow up on the measures taken in response to the Committee's report on the inquiry.

4. In a note verbale dated 25 April 2023, the Committee requested the State party to participate in a follow-up dialogue on Monday 28 August 2023, during its twenty-ninth session, when the Committee would consider the follow-up reports submitted by the State party on 5 September 2018,[3] 1 October 2021[4] and 30 September 2022.[5]

5. In a note verbale dated 26 July 2023, the State party requested that the follow-up dialogue and the Committee's consideration of the follow-up reports be postponed until its thirtieth session, in March 2024.

6. The Committee agreed to postpone the follow-up dialogue with the State party, but decided to proceed to hold dialogues with organizations of persons with disabilities and the independent monitoring mechanisms. Those dialogues were held on 28 August 2023, at its 671st and 672nd meetings.[6]

7. On 21 August 2023, the Committee held private briefings with organizations of persons with disabilities and the independent monitoring mechanisms, having previously received written submissions from them on the implementation by the State party of its recommendations.

* Adopted by the Committee at its thirtieth session (4–22 March 2024).

[1] CRPD/C/15/4 and CRPD/C/15/4/Corr.1.

[2] CRPD/C/GBR/1 and CRPD/C/GBR/CO/1.

[3] CRPD/C/GBR/FIR/1.

[4] CRPD/C/GBR/FIR/1/Add.1.

[5] CRPD/C/GBR/FIR/1/Add.2.

[6] See CRPD/C/SR.671 and CRPD/C/SR.672.

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8. On 18 March 2024, at its 710th meeting, the Committee held a public follow-up dialogue with the State party.[7] The delegation of the State party was headed by the Deputy Director of the Disability Unit, Cabinet Office, and included representatives of the Department of Health and Social Care, the Department for Work and Pensions, the Joint Work and Health Directorate of the Department for Work and Pensions and the Department of Health and Social Care, the devolved governments of Scotland, Wales and Northern Ireland and the Permanent Mission of the United Kingdom of Great Britain and Northern Ireland to the United Nations Office and other international organizations in Geneva.

9. The Committee held private briefings with organizations of persons with disabilities from England, Northern Ireland, Scotland and Wales, on 29 February, 13 March, 15 March, 18 March and 19 March 2024 respectively, and with the independent monitoring mechanisms, having previously received updated written submissions from them on the implementation by the State party of its recommendations.

II. Developments

A. General developments

1. Devolution powers regarding social security

10. The United Kingdom comprises England, Scotland and Wales – which together make up Great Britain – and Northern Ireland. Scotland, Wales and Northern Ireland exercise devolved executive and legislative powers, which enables them to govern local matters independently. The devolution of powers regarding social security varies in degree between the nations of the United Kingdom. Social security powers are fully devolved to Scotland and Northern Ireland, while Wales does not have devolved powers in social security benefits.

11. The devolved government of Northern Ireland, the Northern Ireland Executive, was suspended from January 2017 until January 2020 and again from October 2022 until February 2024. During the periods of suspension, civil servants were empowered – under section 3 of the Northern Ireland (Executive Formation and Exercise of Functions) Act 2018 and under the equivalent subsequent acts adopted in 2019, 2020 and 2022 – to make significant policy decisions, including decisions regarding the allocation or removal of services, if it was in the public interest to do so. Organizations of persons with disabilities in Northern Ireland have questioned the legitimacy of several decisions made in this way, which have disproportionately affected persons with disabilities.

12. The State party specified that the restoration of the devolved government of Northern Ireland in February 2024 was accompanied by additional funding from the Government aimed at stabilizing public services. Nonetheless, the budgetary decisions made during the period of suspension of the devolved institutions that have negatively affected persons with disabilities have yet to be reversed or redressed.

2. Impact of Brexit and COVID-19 on the social care sector

13. On 31 January 2020, the decision of the State party to leave the European Union, or "Brexit", came into effect, which resulted in a loss of funding for community and employment programmes that supported persons with disabilities, most significantly through the European Social Fund. On 23 March 2020, owing to the coronavirus disease (COVID-19) pandemic, the Government issued a mandatory "stay at home" order, banning non-essential travel and gatherings, and closing most businesses. Lockdowns and restrictions continued throughout 2020 and 2021, with all restrictions finally lifting in March 2022.

14. Organizations of persons with disabilities and other sources have described with concern how the combined impact of Brexit and COVID-19 has significantly intensified the recruitment crisis in the social care sector, particularly affecting the ability of persons with disabilities to hire personal assistants. These sources report that both the Migration Advisory

[7] See CRPD/C/SR.710.

Committee and the Government have persistently declined to take measures to facilitate the recruitment of personal assistants from abroad for individual employers. This ongoing refusal exacerbates the challenges in securing the personal care support necessary for persons with disabilities. Organizations of persons with disabilities have expressed deep concern that staffing shortages in mental health care have been linked to the increasing use of physical restraint and unsafe practices on mental health wards.

3. Cost-of-living crisis

15. The cost-of-living crisis in the State party, exacerbated by factors such as Brexit, the COVID-19 pandemic and the invasion of Ukraine by the Russian Federation, has entailed rapid price increases in essential goods and services since late 2021. The crisis has significantly affected disposable incomes, with the most substantial rises in energy, gas and food prices. The Government responded with measures such as the Energy Price Guarantee, whereby the unit cost of electricity and gas was capped, and cost-of-living payments. However, organizations of persons with disabilities have received feedback from their members that these payments were insufficient to meet the increased cost of living.

16. Several sources have informed the Committee that persons with disabilities are among the groups most severely affected by these economic challenges, as they are already more likely to live in poverty, with a disposable income that is approximately 44 per cent lower than that of other working-age adults, exposing them perilously to the rising cost of essentials. A notable 41 per cent of persons with disabilities have reported that they were unable to afford to keep their homes warm during the winter of 2022 to 2023, and 1 in 10 has fallen into debt owing to the crisis.

17. Sources have reported that deep poverty is more common among persons with disabilities than among other persons. In particular, persons with disabilities living alone, who cannot share costs, and are twice as likely to live in deep poverty compared to other single persons. Recent research indicates that 69 per cent of working-age people using food banks in the State party are persons with disabilities, in stark contrast to the rate of 23 per cent for the population as a whole.

18. Organizations of persons with disabilities in Northern Ireland have reported that persons with disabilities are in a particularly dire situation. Persons with disabilities are 50 per cent more likely to live in poverty. Debt is a significant issue, with many losing a substantial portion of their income to debt repayments. Even where individuals qualify for disability benefits, financial support is often insufficient to meet the extra costs associated with disability and ill health, leading to hardship and material deprivation.

19. Organizations of persons with disabilities in Northern Ireland have also raised concerns about persons with disabilities being targeted for financial exploitation and illegal lending during the recent political and economic crises. These concerns highlight a gap in formal responses to protect persons with disabilities from such exploitation.

4. Current political and economic context

20. Since the pandemic, the Government has been concerned about low productivity growth and labour shortages that began in the wake of Brexit. Organizations of persons with disabilities have indicated that the social security system has been made stricter in response, and sanctions and conditions on benefit claimants have increased. They also note that the white paper on health and disability published in 2023 reflects a focus in the budget on economic inactivity and job vacancies.[8]

21. Other sources have informed the Committee that, in the context of the upcoming general election, the Prime Minister has spoken to the media about the need to cut the welfare budget in order to reward working people by cutting taxes. Organizations of persons with disabilities have expressed concern regarding the combination of these policy plans with increasing political and media rhetoric aimed at increasing hostility towards benefit

[8] Department for Work and Pensions, *Transforming Support: The Health and Disability White Paper* (London, Stationery Office, 2023).

claimants, including persons with disabilities. In this regard, the Information Commissioner's Office upheld a complaint against the Department for Work and Pensions concerning media reports that appeared to be aimed at stirring up hostility towards persons with disabilities claiming benefits. Similarly, the Independent Press Standards Organisation recently upheld complaints against *The Telegraph* for inaccurate and misleading articles that gave a false impression about eligibility for disability benefits and the generosity of the social security system.

B. Specific developments

1. General obligations (art. 4)

(a) United Kingdom

22. The National Disability Strategy was published in 2021, following a public consultation through the Disability Survey. However, organizations of persons with disabilities challenged the policy by way of judicial review, arguing that the survey did not comply with the State party's legal standards on public consultation, known as the Gunning Principles, and that insufficient information had been provided to allow for meaningful engagement. The litigants were successful at first instance, and the High Court declared the National Disability Strategy unlawful in 2022. This decision was overturned on appeal, where the Court of Appeal held that the survey was not a consultation, within the meaning of the Gunning Principles, that attracted legal obligations. In September 2023, the State party confirmed that it would begin implementing the National Disability Strategy.

23. The State party conducted a 12-week consultation on the short-term Disability Action Plan 2023 to 2024, which was subsequently published in February 2024 and set out 32 actions for Government across 14 areas. However, organizations of persons with disabilities have expressed their concern that the Disability Action Plan will not result in transformative change or deliver short-term impact for persons with disabilities ahead of the next general election.

24. The State party has informed the Committee that the Disability Unit was established in the Cabinet Office in 2019, taking over the functions of the former Office for Disability Issues, and that organizations of persons with disabilities have had regular monthly engagement with the Disability Unit since 2021. Organizations of persons with disabilities have informed the Committee about the recent downgrading of the post of Minister for Disabled People, Health and Work from Minister of State to the lower-ranked position of Parliamentary Under-Secretary of State.

(b) Scotland

25. The Scottish Government has shared information on steps taken towards close consultation with and active involvement of persons with disabilities, through their representative organizations. It undertakes regular open consultations with stakeholder groups, including organizations of persons with disabilities, as part of policy development, with a range of accessible mechanisms utilized, including Easy Read and British Sign Language formats and bespoke consultation events.

26. Organizations of persons with disabilities have raised concerns about the lack of tangible change arising from consultations, pointing to issues around the consultation on the Learning Disabilities, Autism and Neurodivergence Bill, including inconsistent engagement practices, accessibility issues and the use of distinct groups of impairments. Additionally, although the Scottish Government, in the Programme for Government for 2023 to 2024, committed to introducing an immediate priorities plan ahead of a Scotland-specific disability strategy for devolved areas of policy, such a plan has not yet been introduced, and organizations of persons with disabilities have expressed concern about the slow pace of progress.

(c) Wales

27. The Welsh Government published, in 2019, a framework and action plan on disability, which includes a commitment to meaningful engagement, involvement and co-production with persons with disabilities.[9] Implementation of the framework is monitored by the Disability Equality Forum, which includes representatives of organizations of persons with disabilities. In July 2021, the Disability Equality Forum published a report that exposed the inequalities experienced by persons with disabilities in Wales.[10]

28. The Welsh Government's response was to establish the minister-led Disability Rights Task Force. It has committed to embedding the social model of disability into its work. The work of the Task Force and its 10 themed working groups is being delivered in accordance with the social model of disability and lived experience, in co-production with persons with disabilities. The Welsh Government has committed to delivering on the recommendations of the Task Force through a rights-based plan.

(d) Northern Ireland

29. In Northern Ireland, the lack of stable government has impeded consultation with persons with disabilities and their representative organizations. The Disability Strategy Expert Advisory Panel recommended that the Northern Ireland Executive develop a Northern Ireland disability forum to work with the Government and organizations of persons with disabilities. The Northern Ireland Executive, in its draft programme for government for 2016, committed to involving persons with disabilities in setting up a central regional disability forum. However, such a forum has not yet been established. The newly formed Executive has not yet proposed a new programme for government. The Department of Health of the Northern Ireland Executive did establish a regional disability forum for health and social care in 2021, to consider, discuss and provide feedback to the Department on current, emerging and future strategic policies that may affect persons with physical, sensory and/or communication disabilities. Its membership includes service users, their carers, user-led organizations of persons with disabilities, and the statutory, voluntary and community sectors.

2. Living independently and being included in the community (art. 19)

(a) United Kingdom

30. The State party has informed the Committee that Disability Living Allowance for adults is closed to new applicants, but that legacy claims continue to be paid to persons born earlier than 1948. Over time, other legacy claimants will be moved from Disability Living Allowance to Personal Independence Payment. Disability Living Allowance for children remains open, providing additional financial support to assist with the extra costs of looking after a child who is under the age of 16 years and has difficulties walking or has additional requirements compared to another child of the same age. Organizations of persons with disabilities have informed the Committee that since Brexit there has been a new shortage of migrant workers, including personal assistants, and it has become more challenging for persons with disabilities to hire personal assistants on their own. The State party has also apprised the Committee of the Disability Unit's "Ask, Don't Assume" behaviour-change campaign, launched in October 2023 to encourage people to ask persons with disabilities about their access needs, and to challenge any assumptions that they might have about persons with disabilities and their capabilities.

(b) England

31. The State party has informed the Committee that Personal Independence Payment was introduced with the intention of replacing Disability Living Allowance. The payment is available to persons with "a long-term physical or mental health condition or disability" or

[9] Welsh Government, *Action on Disability: The Right to Independent Living – Framework and Action Plan* (2019).

[10] Welsh Government, *Locked Out: Liberating Disabled People's Lives and Rights in Wales beyond COVID-19* (2021).

"difficulty doing certain everyday tasks or getting around because of [their] condition". This payment is intended to support adults with the extra cost of living with a disability, and comprises a daily living part, to help with everyday tasks, and a mobility part, to provide assistance with getting around. Under the Social Security (Personal Independence Payment) (Amendment) Regulations 2017, the assessment criteria for the mobility payment were amended. The State party has also apprised the Committee of an award delivered in 2022 by the Department for Levelling Up, Housing and Communities of £20 million to 26 councils in England for a new programme to improve quality in supported housing.

32. The United Kingdom Independent Mechanism has shared information about the Inclusive Transport Strategy, published in 2018, which aimed to promote equal access to the transport system for persons with disabilities by 2030. In 2020, the State party committed to raising accessibility standards for new homes in England, and £102 million was allocated in 2023 to fund housing adaptations in England as part of implementation of the white paper on adult social care reform.[11] Following the recommendations of the Wessely review of the Mental Health Act 1983 (England and Wales) in 2018, the draft Mental Health Bill (England and Wales) and the Building the Right Support Action Plan were introduced in 2022, with the aim of providing individuals with greater choice and autonomy over their care and treatment, while reducing inappropriate detention and strengthening community support for persons with intellectual and/or psychosocial disabilities. Local bodies known as integrated care boards were established under the Health and Care Act 2022, to plan and fund health services in their area. In 2021, a new fund to tackle bullying in schools in England was announced, which was inclusive of children with "special educational needs" and disabilities.

33. The State party notes that the Department for Education provides £27.3 million each year in funding under the Support for Families with Disabled Children programme, to deliver grants and support to low-income families raising children and young persons who have disabilities or are seriously ill. These grants are for items and services not provided by the statutory system, to improve quality of life and ease additional daily pressures.

(c) Scotland

34. The Scottish Government has informed the Committee that its human rights bill would be introduced before the end of the parliamentary year. In 2019, it published the Disability Action Plan, aimed at supporting equal and effective participation of persons with disabilities in society. Personal Independence Payment was replaced with Adult Disability Payment, administered by Social Security Scotland, by virtue of the Social Security (Scotland) Act 2018 and subject to the same eligibility criteria as Personal Independence Payment in England and Wales.

35. Furthermore, in 2020, the Scottish Government introduced Child Winter Heating Payment to support children and young persons with disabilities with intensive support needs and their families in heating their homes. Child Disability Payment was first paid in 2021 and Adult Disability Payment in 2022. The application processes for disability assistance in Scotland have been co-designed with persons with disabilities to ensure accessibility. The Scottish Government also supports an independent advocacy service for persons with disabilities throughout the application process.

36. The Scottish Parliament passed the Hate Crime and Public Order (Scotland) Act 2021, introducing offences of stirring up hatred covering several characteristics, including disability. The Hate Crime Strategic Partnership Group was established to oversee delivery of the Hate Crime Strategy. The Government issued an updated Hate Crime Strategy in 2023.

37. The United Kingdom Independent Mechanism notes that the expectations of Social Security Scotland are outlined in a charter, although there are limited reports of the charter facilitating change in programmes designed to improve the social security system, particularly for persons with disabilities, taking a human rights-based approach.

[11] Department of Health and Social Care, *People at the Heart of Care: Adult Social Care Reform White Paper* (London, Stationery Office, 2021).

(d) Wales

38. The Welsh Government has informed the Committee that Personal Independence Payment was introduced in Wales with the intention of replacing Disability Living Allowance, as in England.

39. The United Kingdom Independent Mechanism has shared with the Committee that the Welsh Government issued Housing Adaptations Service Standards in 2019, to meet the Lifetime Homes standards. In 2021, the Welsh Development Quality Requirements for building publicly-funded affordable housing schemes were updated and simplified to retain the accessibility requirement for all homes. The housing budget was increased from £17.66 million in 2020/21 to £19.5 million in 2022/23 to provide aids and home adaptations for persons with disabilities. In the Wales transport strategy of 2021, commitments were made to invest in upgrading transport services and infrastructure, and £10 million was invested in 2022 to ensure that 11 railway stations had step-free access.

40. Regarding hate crime, the United Kingdom Independent Mechanism has shared that the Relationships and Sexuality Education Code, under the Curriculum for Wales, requires schools to address all forms of bullying. In 2021, the Welsh Government launched its "Hate Hurts Wales" campaign, aimed at raising awareness and tackling hate crime, including hate crime on the basis of disability.

41. Organizations of persons with disabilities note that access to "blue badge" parking and to bus pass schemes is contingent on receipt of Personal Independence Payment. Additionally, they note that many persons with disabilities use community transport programmes, which rely on a third sector that is in financial difficulty in Wales and does not provide the same reliability as public transport.

(e) Northern Ireland

42. The State party has informed the Committee that in 2019, the Northern Ireland Executive replaced Disability Living Allowance with Personal Independence Payment, with similar eligibility criteria to England and Wales,. In 2021, the Addressing Bullying in Schools Act (Northern Ireland) 2016 came into force, placing a duty on schools to take steps to prevent bullying and to record incidents of bullying. In May 2019, the Department of Justice of the Northern Ireland Executive commissioned an independent review of hate crime legislation. Work has progressed to implement 34 recommendations from that review, including preparations for a proposed hate crime bill. It is planned to introduce the bill later in the current Assembly term.

3. Work and employment (art. 27)

(a) United Kingdom

43. According to the United Kingdom Independent Mechanism and other sources, the disability employment gap is shrinking across the United Kingdom while the disability pay gap continues to widen. The disability employment gap for the United Kingdom is 29 per cent, representing a drop of 4.8 per cent from 2014. Persons with disabilities are more likely to carry out part-time or self-employed work than other people. Persons with intellectual and/or psychosocial disabilities have lower rates of employment and tend to work in more precarious sectors, and nearly 69 per cent of workers with disabilities earn less than £15 per hour.

44. In a policy paper in 2017, the Government set out measures to reduce the disability employment gap and move a million more persons with disabilities into employment by 2027.[12] Many areas set out in this plan are devolved to Scotland, Wales and Northern Ireland. Organizations of persons with disabilities have stated that the Work and Health Programme, launched in 2017, did not result in progress, and that 88 per cent of participants have not experienced improved job outcomes.

[12] Department for Work and Pensions and Department of Health, *Improving Lives: The Future of Work, Health and Disability* (London, Stationery Office, 2017).

45. With regard to work capability assessments and conditionality, the State party has informed the Committee that non-contributory income support is paid through Universal Credit and is subject to functional health and disability assessments, conditionality and sanctions. The work capability assessment applies in England, Scotland and Wales, and results in the categorization of the person concerned into one of the following: (a) fit for work; (b) limited capability for work; or (c) limited capability for work and work-related activity. Where a person is assessed as falling into the first or second categories, they must satisfy work-related requirements. Failure to comply results in sanctions, with a potential reduction in Universal Credit of up to 100 per cent. A person who is assessed as falling into the third category is not obliged to satisfy work-related requirements and receives an enhanced rate of Universal Credit.

46. In its white paper on health and disability published in March 2023, the Government proposed to replace the current system of multiple assessments with a single health and disability functional assessment, for determining eligibility for Personal Independence Payment, and to introduce a new health element of Universal Credit, replacing the third category of the work capability assessment. Organizations of persons with disabilities have noted there are 632,000 claimants who currently receive the enhanced rate of Universal Credit under the third category but who do not receive Personal Independence Payment. Also under the white paper, from September 2023, Universal Credit claimants in the "light touch" conditionality group would be required to meet with work coaches as part of support for in-work progression, aimed at facilitating movement into higher-paid employment. Approximately 600,000 persons are estimated to be in the "light touch" group, comprising those on low wages – that is, above the Administrative Earnings Threshold but below the Conditionality Earnings Threshold – and those with no or exceptionally low earnings in a household with earnings above the Administrative Earnings Threshold.

47. Other sources have informed the Committee about a significant backlog in the processing of applications for the Access to Work scheme, which facilitates the provision of workplace accommodation for persons with disabilities. Organizations of persons with disabilities have noted that this backlog presents a significant barrier to paid employment for persons with disabilities. Organizations of persons with disabilities have also criticized the white-paper proposals to support persons into employment as being primarily focused on the situation in England and Wales.

48. Concerning negative stereotypes and stigmas, organizations of persons with disabilities have shared their concern that discriminatory attitudes and negative perceptions of persons with disabilities persist and create obstacles in employment. Persons with hidden disabilities (including psychosocial disabilities) are often reluctant to disclose their condition for fear of actual or perceived stigma and may be reluctant to request adaptations at work. Persons with disabilities are underrepresented in Parliament and at the local level, and there is a lack of visibility of persons with disabilities in high-profile work and employment, including senior and managerial positions.

(b) Scotland

49. The Scottish Government has shared its commitment to reducing the barriers to employment for persons with disabilities and halving the disability employment gap as part of the Fairer Scotland for Disabled People programme, through a delivery plan (2016) and associated employment action plan (2018). The Disabled Children and Young People (Transition to Adulthood) (Scotland) Bill is under consideration by the Scottish Parliament, and work is under way to increase the number of applications from persons with disabilities to public boards in Scotland.

50. The Transition Fund, provided by the Independent Living Fund Scotland, offers individual grants to support young persons with disabilities in the transition to adulthood. However, organizations of persons with disabilities have noted that the fund is currently limited to first-time applicants only.

51. The United Kingdom Independent Mechanism has noted that the disability pay gap in Scotland was 18.5 per cent in April 2021, the highest in the United Kingdom, and that of the

23,584 adults with intellectual disabilities known to local authorities, just 4.1 per cent are in employment.

(c) Wales

52. In 2021, in response to the report by the Disability Equality Forum about the rights of persons with disabilities in Wales during the COVID-19 pandemic, the Welsh Government formed the Disability Rights Task Force and committed to working with persons with disabilities, through their representative organizations, to co-produce a new disability equality action plan, set to be published in 2024. The Welsh Government committed in its programme for government to incorporating the Convention domestically, and established the Human Rights Advisory Group to support this work. In 2022, it published the Stronger, Fairer, Greener Wales plan, aiming to improve labour market outcomes for persons with disabilities. The real living wage has also been introduced in Wales for social care workers with the aim of supporting the sustainability of the social care system and improving outcomes.

53. The United Kingdom Independent Mechanism and other sources have shared that the disability pay gap in Wales was 11.6 per cent in 2021, which, while down from the peak of 15.1 per cent in 2019, was higher than between 2016 and 2018. Persons who require support with communication continue to be affected by a lack of such support in employment, including through the Access to Work scheme. The framework on disability sets out several current and proposed initiatives aimed at reducing the disability employment gap in Wales, including promotion of Access to Work.

(d) Northern Ireland

54. Northern Ireland was hit especially hard by the loss of funds from the European Union. The United Kingdom Shared Prosperity Fund, introduced to succeed those funds, does not provide the same standard of support to persons with disabilities for access to employment in Northern Ireland as was available through the European Social Fund. It offers £20 million less than the previous funding, and will end in March 2025.

55. Organizations of persons with disabilities in Northern Ireland have noted that the Access to Work scheme does not include vocational and technical training. Vocational training for trade skills is not available to many persons with disabilities because of minimum educational requirements. Furthermore, most persons with disabilities using food banks are in employment, indicating disproportionately prominent levels of poverty arising from insecure employment, low wages and high cost of living.

56. The Department for Communities of the Northern Ireland Executive has shared its commitment to reducing barriers to employment for persons with disabilities and has developed a new strategy for Northern Ireland on disability and work. This policy remains at the draft stage and is awaiting ministerial consideration.

4. Adequate standard of living and social protection (art. 28)

(a) United Kingdom

57. The State party has stressed that the introduction of Universal Credit in 2013 was aimed at simplifying the welfare benefits system by consolidating multiple forms of financial support into a single monthly payment. Universal Credit replaced several previous benefits, including Income Support, income-based Jobseeker’s Allowance, Housing Benefit, Child Tax Credit and Working Tax Credit. Other financial benefits continue to be provided separately, including Child Benefit, Carer’s Allowance, Disability Living Allowance, Personal Independence Payment, Employment and Support Allowance and State Pension. Persons with disabilities may obtain access to financial support on a contributory (Employment and Support Allowance) or non-contributory (Personal Independence Payment) basis, depending on eligibility.

58. The calculation of Universal Credit includes consideration of the needs or circumstances of the claimant. Under section 12 (2) of the Welfare Reform Act 2012, such needs or circumstances “may include” the fact a claimant has “limited capability for work

and work-related activity" or "regular and substantial caring responsibilities for a severely disabled person". If deemed capable to work, claimants are required to accept a "claimant commitment" that details the action that they must take in order to receive Universal Credit.

59. Pertaining to charges for social care, organizations of persons with disabilities have informed the Committee that the Welsh Government is considering increasing social care charging by £20 per week, to a total of £120 per week. In Scotland, social care is free, but there are charges for non-residential services. Scotland is to introduce social care charging by 2026, and persons with disabilities back this measure as it will lower the amount that they are currently paying for support. Northern Ireland does not have social care charges. Organizations of persons with disabilities have shared with deep concern reports on budget restraints and cuts that are forcing local authorities to lower the standard of care by choosing care options that take the least amount of time and effort, rather than providing optimal care.

60. With respect to sign language interpretation, the Government has enacted the British Sign Language Act 2022, under which British Sign Language is recognized as a language in England, Scotland and Wales. Under the Act, the Government is required to report on the use of British Sign Language by ministerial government departments in their public communications. In addition, the Government has appointed the non-statutory British Sign Language Advisory Board, the first dual-language board advising the Government. The board comprises a majority of deaf users of British Sign Language and advises the Government on key issues that affect the deaf community.

61. Organizations of persons with disabilities have noted that the British Sign Language Advisory Board has no powers to ensure that government communications are accessible. Additionally, they have indicated that the British Sign Language Act 2022 has not improved access to support for communication for deaf users of British Sign Language. At the same time, changes to contracting arrangements for the provision of British Sign Language interpretation by public bodies have created additional barriers.

(b) England

62. The Care Act 2014 sets out the duties of local authorities in England when assessing the requirements of persons with disabilities for care and support. The legislation contains an appeals procedure which has never been enacted. In its white paper on adult social care reform published in 2021, the Government indicated that no appeals system would be implemented in the foreseeable future. In 2023, the High Court dismissed a judicial review seeking to challenge the lack of an appeals procedure.

(c) Scotland

63. The Scottish Government has shared that the Poverty and Inequality Commission, a statutory body, was established in 2019 to advise ministers on the impact of policies on reducing poverty and inequality. Under the Fairer Scotland Duty (2018), public bodies in Scotland have a legal responsibility to pay due regard to socioeconomic disadvantage in strategic decision-making. Under the Council Tax Reduction scheme, £351 million have been invested to mitigate the effects of welfare reform, which is helping offset funding reductions from the devolved Council Tax Benefit scheme.

64. The Independent Review of Adult Social Care in Scotland recommended the reopening of the Independent Living Fund Scotland, offering interim progress while a national care service is developed. The Scottish Government announced the reopening of the Independent Living Fund Scotland in March 2024.

65. The National Care Service (Scotland) Bill is progressing through the Scottish Parliament and would provide the statutory basis for the national care service. The Bill is based on recommendations from the Independent Review of Adult Social Care in Scotland. The Bill would allow ministers to transfer responsibility for social care from local authorities to a new, national service, and could cover adults' and children's services and areas such as justice and social work. Once the Bill has passed, ministers may also transfer health-care functions from the National Health Service to the national care service.

66. The United Kingdom Independent Mechanism has noted that the Health, Social Care and Sport Committee, which is leading the detailed scrutiny of the Bill in the Scottish Parliament, expressed the following concerns in its report of February 2024 on the progress of the Bill: that the Scottish Government had so far been unable to provide details of amendments that it would bring forward to clarify its revised proposals; that, while it recognized that the Bill was a framework bill, there was a lack of detail on what that framework would look like; and that the Scottish Government had so far been unable to articulate and communicate a model of how the proposed national care service would operate.[13] In response to these concerns, according to information from the United Kingdom Independent Mechanism, the Scottish Government has committed to establishing a new national care service board, which will include, at a minimum, the Scottish Government, local government, the National Health Service and people with lived experience. The board will oversee and govern social work, social care support and community health services, with the full scope to be determined as part of the co-design process.

(d) Wales

67. The United Kingdom Independent Mechanism has reported that Welsh Government created the Disability Disparity Evidence Unit in 2022 – along with two other units that together make up the Equality, Race and Disability Evidence Units – with the primary objective of enhancing the availability and quality of evidence regarding persons with disabilities and ensuring the accessibility of such evidence. In accordance with the units' overarching Equality Evidence Strategy, the Disability Disparity Unit has committed to co-producing work with persons with disabilities through their representative organizations where possible.

68. Although social security is a reserved matter, remaining the responsibility of Parliament in Westminster, the Welsh Government carries out cumulative impact assessment of welfare reform on ministerial portfolios and households, and implements policies to alleviate the reform, including allocating additional funding for vital services such as front-line advice, the Discretionary Assistance Fund, the Council Tax Reduction scheme and free school meals.

69. The national service for reporting hate crime in Wales is delivered by Victim Support Cymru. After Brexit, additional funding was allocated following an increase in incidents of hate crime.

70. In 2017, the Welsh Government introduced the Prosperity for All strategy, replacing a former poverty-specific action plan. In 2018, the Special Rapporteur on extreme poverty and human rights described the new strategy as lacking clear performance targets and progress indicators.[14]

(e) Northern Ireland

71. Organizations of persons with disabilities have asserted that the budget allocated to Northern Ireland by the Westminster Government is at least £732 million short of the amount required to deliver public services, which has resulted in severe cuts to public services and to departmental budgets. They have also shared that a draft anti-poverty strategy has been developed which takes an intersectional approach, although there has been no update on its development or implementation since the Northern Ireland Executive was re-established in February 2024.

72. Other sources have noted that the budget for Discretionary Support was reduced by 50 per cent in 2023/24. Discretionary Support provides emergency grants and loans for people on a low income who are in extreme, exceptional or crisis situations. Compared to spending of £40.3 million on final grant awards of Discretionary Support in 2022/23, £20 million was allocated for 2023/24. Furthermore, grants were awarded for items deemed

[13] Scottish Parliament, Health, Social Care and Sport Committee, "Stage 1 report on the National Care Service (Scotland) Bill", 22 February 2024, paras. 104 and 105.

[14] A/HRC/41/39/Add.1, para. 93.

essential only, and the period of time before a further grant could be awarded for the same item was extended to 24 months, except in the event of a disaster.

III. Assessment of the implementation by the State party of the Committee's recommendations

A. General obligations (art. 4)

73. The Committee remains concerned about the insufficient national consistency in meeting obligations under the Convention across the State party. The obligation to closely consult and actively involve persons with disabilities, through their representative organizations, in decision-making affecting their lives has been largely unaddressed. The Court of Appeal found that the Disability Survey that constituted consultations for the National Disability Strategy did not meet the requirements of a consultation, and organizations of persons with disabilities have raised the alarm about the 12-week consultation on the Disability Action Plan for not responding to their concerns.

74. The Committee notes with concern that the cross-cutting obligation under article 8 of the Convention to combat stereotypes, prejudices and harmful practices relating to persons with disabilities has been largely ignored in the context of articles 19, 27 and 28. There is a pervasive framework and rhetoric that devalues persons with disabilities and undermines their human dignity. Reforms to social welfare benefits are premised on a notion that persons with disabilities are undeserving, wilfully avoiding employment ("skiving off") and defrauding the system. This notion has resulted in hate speech and hostility towards persons with disabilities.

B. Living independently and being included in the community (art. 19)

75. The Committee is concerned that during the assessment period, there has been no significant progress for persons with disabilities throughout the State party concerning their right to live independently and to be included in the community. While some reforms and policies have been undertaken to provide financial support and accessible housing and transport, they have been inadequate in the light of the cost-of-living crisis.

76. The Committee notes with deep concern that Personal Independence Payment – and the Adult Disability Payment in Scotland – is not sufficient to cover the extra costs of living with disabilities, that the eligibility criteria are contrary to the human rights model of disability and that the Independent Living Fund, at the State party level, has been closed to new applicants since 2010. Persons with disabilities, including those who are at the intersection of multiple marginalization, such as women, children, members of racialized and ethnic minorities, migrants and asylum-seekers, report that they are unable to afford personal assistance, care support, health and food.

77. The Committee is deeply concerned that personal assistance designed to cover bare subsistence is being offered to persons with disabilities instead of the amount of personal assistance required for the holistic achievement of potential and the full enjoyment of the right to live independently and to be included in the community. Persons with disabilities also report insufficient support for recreational activities, including accessible public transportation and 24-hour accessible taxis.

78. The Committee is also deeply concerned about evidence across the State party that rates of institutionalization of persons with disabilities are increasing, including the following: persons with disabilities living in secure psychiatric facilities owing to a lack of community-based support; persons with disabilities being forced to remain in hospitals because there are no other alternatives for support and housing; persons with disabilities being unable to live at home because of inadequate support and being forced to live in social care homes; and persons with disabilities being housebound owing to inadequate support in terms of access to the community. There are also indications of abuse, mistreatment and the increasing use of restraints, restrictive practices and coercive measures in the context of such

institutionalization, and reports of failures in mental health care that are linked to a large number of unexpected deaths in the mental health-care system (particularly under Norfolk and Suffolk National Health Service Foundation Trust), with no concrete plans for investigation.

79. The Committee notes that no measures have been taken to end disability-based detention and compulsory treatment, and that the current inquiry into inpatient mental health institutions in England is not explicitly underpinned by the Convention. In addition, many persons with disabilities live in unsafe, inaccessible housing or are homeless.

80. The Committee is concerned that the draft Mental Health Bill continues to allow for involuntary detention and coercive practices, which deny persons with disabilities individual autonomy, control and choice.

81. The Committee notes the information provided by the State party on efforts to tackle bullying in schools, while also noting that disability-related hate crime has increased.

C. Work and employment (art. 27)

82. The Committee notes with concern that the work capability assessment process is complex and onerous, and that the application for the assessment has increased in size, which means that many potential applicants opt out of completing the application altogether. Applicants are not always allowed assistance or support in assessment meetings, and assessors are inexperienced and unqualified, in particular to assist people with intellectual and/or psychosocial disabilities. The work capability assessment does not take account of the specific circumstances of the person's life or any potential need for the person to be connected to other support and services, such as in situations of domestic violence, mental distress or crisis, or for those with caring responsibilities. Without a holistic approach, persons with disabilities cannot be supported to be work-ready. The evidence overwhelming demonstrates that the process is not trauma-informed, not linked to other services or support, and not suitable to assist the persons concerned to be job-ready.

83. The Committee takes note of the plans to replace the work capability assessment with a single health and disability functional assessment; however, it notes the concerns expressed by organizations of persons with disabilities that this new assessment could increase the risks for persons with disabilities of being deemed ineligible for one or more payments.

D. Adequate standard of living and social protection (art. 28)

84. The Committee has significant concerns regarding the amendments of November 2023 to the Data Protection and Digital Information Bill. Under the amended Bill, the Department for Work and Pensions would be allowed to perform regular checks of the bank accounts of persons with disabilities to monitor fraud and errors. Furthermore, with automated decision-making, artificial intelligence would be responsible for making decisions about social security: there is a tangible concern that artificial intelligence tools and algorithms may harbour inherent bias, potentially leading to punitive measures that, fundamentally, could impart a sense of criminalization and psychological distress among individuals.

85. The Committee also recalls that the Special Rapporteur on extreme poverty and human rights, following his visit to the United Kingdom in November 2019, stated that the State party was in violation of its human rights obligations under international law in relation to its duty to provide a level of social protection that ensured an adequate standard of living, including for persons with disabilities.

86. The Committee is appalled by reports of "benefit deaths", referring to fatalities among persons with disabilities in the State party subsequent to their engagement with the process for determining eligibility for benefits. The evidence received by the Committee revealed a disturbingly consistent theme: persons with disabilities resorting to suicide following the denial of an adequate standard of living and social protection, in stark contradiction of the foundational principles enshrined in the Convention. In addition to numerous personal

accounts that the Committee received concerning "benefit deaths", a research study shared with the Committee indicated a correlation between the Government's initiative to re-evaluate incapacity benefits through the work capability assessment and an estimated 600 suicides over a span of three years. Testimonies have also been received regarding the minimal, unsuitable and/or abusive response to individuals' mental health emergencies that are frequently precipitated by the benefits assessment procedure.

87. The Committee is deeply concerned by reports that refugees, asylum-seekers and those in refugee-like situations with disabilities do not receive adequate benefits and support to live in the community, and are experiencing challenges in obtaining personal assistants, assistive devices, accessible housing and essential disability support.

IV. Conclusions and recommendations

88. **The Committee concludes that no significant progress has been made in the State party concerning the situation of persons with disabilities addressed in the inquiry proceedings. The Committee notes that while some measures have been taken to address its recommendations issued pursuant to article 6 of the Optional Protocol, there are also signs of regression in relation to the standards and principles enshrined in the Convention, in contravention of article 4 (2) of the Convention.**

89. **The Committee finds that the State party has failed to take all appropriate measures to address grave and systematic violations of the human rights of persons with disabilities and has failed to eliminate the root causes of exclusion and discrimination on the basis of disability. These failures have a particular impact with respect to the State party's obligations to guarantee the right of persons with disabilities to live independently and to be included in the community (art. 19), the right to work and employment on an equal basis with others (art. 27) and the right to an adequate standard of living and social protection (art. 28).**

90. **Finding that the recommendations that it issued in 2017 have not yet been fulfilled, the Committee reiterates those recommendations.**[15] **In addition, the Committee calls on the State party, as a matter of urgency:**

(a) **To take all the legislative and administrative measures necessary to ensure a nationally consistent framework for implementing and monitoring obligations under the Convention across the State party, in order to avoid regression in relation to the standards and principles enshrined in the Convention, and to establish a comprehensive process for close consultation with and active involvement of persons with disabilities, through their representative organizations, on the National Disability Strategy;**

(b) **To take all the legislative, policy and administrative measures necessary to prevent, review and respond to occurrences of unexpected deaths and "benefit deaths", including appropriate redress and reparation measures for the victims' families;**

(c) **To amend laws on hate crime to ensure nationally consistent protections for persons with disabilities across the State party;**

(d) **To undertake an inquiry into the impact of the work capability assessment and formulate proposals to replace it with a single functional assessment on health and disability, ensuring that any assessment process takes account of individual circumstances, is trauma-informed, is based on the human rights model of disability and enables individuals to seek redress for any adverse effects of the process;**

(e) **To develop a nationally consistent strategy to address the causes and impact of labour shortages across mental health and disability services, particularly the shortage of personal assistants, in line with the Committee's general comment No. 5 (2017) on living independently and being included in the community, including by promoting and supporting the right of persons with disabilities to retain the amount of**

[15] CRPD/C/15/4 and CRPD/C/15/4/Corr.1, para. 14.

personal assistance necessary for the holistic achievement of potential and the full enjoyment of the right to live independently and to be included in the community and by providing support for recreational activities, including accessible public transportation and 24-hour accessible taxis;

(f) **To take comprehensive measures to ensure that persons with disabilities are adequately supported through social security payments, benefits and allowances, including by conducting thorough assessments based on the human rights model of disability, and reviewing the current Universal Credit system, to ascertain the additional costs of living with disabilities and adjusting benefit amounts accordingly to reflect these costs;**

(g) **To ensure that persons with disabilities who are at the intersection of multiple marginalization, including women, children, members of racialized and ethnic minorities, migrants, asylum-seekers and those in refugee-like situations, are able to enjoy their right to live independently and to be included in the community and their right to an adequate standard of living and social protection;**

(h) **To reinforce its efforts to avoid the institutionalization of persons with disabilities, prevent the use of restrictive and unsafe practices and investigate unexplained deaths in the mental health-care system, including under Norfolk and Suffolk National Health Service Foundation Trust;**

(i) **To ensure that the Data Protection and Digital Information Bill establishes safeguards and review mechanisms to prevent the risk of encoded bias in artificial intelligence tools and algorithms and that such technologies are deployed in a manner that respects human rights, prevents discrimination and upholds the principles of transparency, accountability and fairness;**

(j) **To ensure that the human rights model of disability, which underpins the Convention and which is outlined in the Committee's general comment No. 6 (2018) on equality and non-discrimination, is respected in all measures taken.**

V. Follow-up procedure

91. **The Committee, having considered the information presented to it by the State party, independent monitoring mechanisms and organizations of persons with disabilities at the follow-up dialogues held on 28 August 2023 and 18 March 2024 and the written information submitted to it by the State party following the dialogues, decides:**

(a) **To continue the follow-up proceedings, pursuant to article 7 of the Optional Protocol, in relation to the implementation by the State party of the recommendations of the Committee in its inquiry report;**

(b) **To request the State party to submit, by March 2029, a report on the implementation of the recommendations of the Committee in the inquiry report and in the present report on follow-up.**